



Department of the Treasury Financial Crimes Enforcement Network

Ruling

FIN-2020-R001

Issued: February 10, 2020

Subject: FinCEN CTR (Form 112) Reporting of Certain Currency Transactions for Sole Proprietorships and Legal Entities Operating Under a “Doing Business As” (“DBA”) Name

Effective April 6, 2020,¹ this ruling replaces and rescinds two rulings: FIN-2006-R003 and FIN-2008-R001.² The rescinded rulings were based on the now obsolete FinCEN Form 104. The Financial Crimes Enforcement Network (“FinCEN”) is issuing this administrative ruling to clarify the Currency Transaction Report (“CTR”), FinCEN Form 112 filing obligations when reporting transactions involving sole proprietorships.

In an effort to both enhance regulatory efficiency and provide complete and accurate CTR data to law enforcement, we are clarifying the requirements of financial institutions reporting on currency transactions involving sole proprietorships and legal entities operating under a “doing business as” (“DBA”) name when filing the current CTR FinCEN Form 112.³

Sole Proprietorship

A sole proprietorship is a business in which one person, operating in his or her own personal capacity, owns all of the business’s assets and is responsible for all of the business’s liabilities.⁴ Consistent with the definition of “person” in the Bank Secrecy Act’s implementing regulations,⁵ a sole proprietorship is not a separate legal person from its individual owner. Thus, when a CTR FinCEN Form 112 is prepared on transactions involving a sole proprietorship, a financial institution should complete a single Part I “Person Involved in Transaction” section with the individual owner’s name in Items 4 through 6, gender in Item 7, and date of birth in Item 17.⁶ If

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1. The effective date for BSA E-Filing batch filers is September 1, 2020.
 2. FIN-2006-R003, Currency Transaction Reports on Sole Proprietorships, Feb. 10, 2006, and FIN-2008-R001, Reporting of Certain Currency Transactions for Sole Proprietorships and Legal Entities Operating Under a “Doing Business As” (“DBA”) Name, Jan. 25, 2008.
 3. See 31 CFR § 1010.716(a)(3).
 4. Black’s Law Dictionary (11th ed. 2019). The owner of a business who acts alone and has no partners. This definition excludes a single member limited liability company (“LLC”), even one operating under the same tax identification number as its member, because the member operates the LLC in its capacity as a separate legal entity and the LLC, not the member, is responsible for its liabilities.
 5. 31 CFR § 1010.100(mm).
 6. In states with community property laws that allow a husband and wife to operate an unincorporated business as a sole proprietorship, the sole proprietorship’s proprietor, for purposes of CTR reporting, will be the spouse whose social security number is attached to the sole proprietorship.

the individual owner is doing business in his or her own name, then the rest of Part I should be completed reflecting the individual owner's information. If the individual owner is operating the business under a different name (a "doing business as" or "DBA" name), then such name should appear in Item 8 "Alternate name," and the rest of Part I (other than Items 4-6, 7, and 17 identifying the individual owner) be completed with reference to the DBA name.⁷ If the individual owner operates under multiple DBAs, then a separate Part I section should be completed for each different DBA involved in the transactions. The amount and account number(s) entered in Item 21 "Cash in amount..." or Item 22 "Cash out amount..." will be the amount and account number(s) associated with the specific location corresponding to the reported transaction.

Legal Entity

When a CTR is prepared on a legal entity such as a partnership, incorporated business, or limited liability company, a Part I section should be prepared containing the home office/headquarters data (address, telephone number, identification number, etc.) of the entity. When multiple entity locations are involved in an aggregated CTR, a separate Part I section should be prepared for each location involved. Each additional Part I section should include the entity's legal name in Item 4 and alternate name, if any, in Item 8. Each additional Part I section will include the location's address along with all other location or entity data applicable to that location. The amount and account number(s) entered in Item 21 "Cash in amount..." or Item 22 "Cash out amount..." will be the amount and account number(s) associated with the specific location. The initial Part I section on the entity home office/headquarters will show the total amount and all account numbers involved in Item 21 or 22. When there are multiple DBA names involved in the transaction, Item 8 "Alternate name" should be left blank in the entity home office Part I section. When the entity home office address is the same as the transaction location, only a home office Part I section should be prepared.

7. Enter only one "Alternate name" for item 8. If there are multiple alternate names involved in the transactions, additional Part I's are required to record the additional alternate names.



RULING

FIN-2018-R002

Issued: May 16, 2018

Subject: Beneficial Ownership Requirements for Legal Entity Customers of Certain Financial Products and Services with Automatic Rollovers or Renewals

The Financial Crimes Enforcement Network (FinCEN) is issuing this ruling to provide a 90-day limited exceptive relief to covered financial institutions from the obligations of the Beneficial Ownership Requirements for Legal Entity Customers (31 CFR § 1010.230) (Beneficial Ownership Rule) with respect to certain financial products and services that automatically rollover or renew (i.e., certificate of deposit (CD) or loan accounts) and were established before the Beneficial Ownership Rule's Applicability Date, May 11, 2018. This exception begins, retroactively, on May 11, 2018, and will expire on August 9, 2018. During this time, FinCEN will determine whether and to what extent additional exceptive relief may be appropriate for such financial products and services that were established before May 11, 2018, but are expected to rollover or renew after such date.

Consistent with the definition of "account" in the Customer Identification Program (CIP) rules and subsequent interagency guidance,¹ each time a loan is renewed or a certificate of deposit is rolled over, the bank establishes another formal banking relationship and a new account is created. As clarified in the Customer Due Diligence Frequently Asked Questions (CDD FAQs) published on April 3, 2018, covered financial institutions are required to obtain information on the beneficial owners of a legal entity that opens a new account for each new formal banking relationship established, even if the legal entity is an existing customer. FinCEN understands that some covered institutions have not treated such rollovers or renewals as new accounts and have established automatic processes to continue the

1. See "Interagency Interpretive Guidance on Customer Identification Program Requirements under Section 326 of the USA PATRIOT Act, FAQs: Final CIP Rule," p. 8 (April 28, 2005).

banking relationship with the customer.² These covered financial institutions have expressed concern regarding their ability to comply with the Beneficial Ownership Rule with respect to such accounts.

FinCEN believes that further consideration of this issue is appropriate and is, therefore, granting this temporary exception with respect to collecting beneficial ownership on certain financial products and services (*i.e.*, CD and loan accounts) that automatically rollover or renew and were established before the Beneficial Ownership Rule's Applicability Date.

Exceptional Relief

Under 31 U.S.C. § 5318(a)(5) and 31 CFR § 1010.970, FinCEN has the authority to make exceptions to the requirements of 31 CFR Chapter X. Such exceptions may be either conditional or unconditional and may apply to particular persons or classes of persons. FinCEN may extend, modify or revoke exceptions at its discretion.

For the reasons discussed above, FinCEN grants an exception to covered financial institutions for 90 days, up to and including August 9, 2018, from the Beneficial Ownership Rule's requirements to identify and verify beneficial ownership information for rollover or renewal of certain financial products and services (*i.e.*, CD and loan accounts) that were established before May 11, 2018.

For questions concerning this ruling, please contact FinCEN's Regulatory Helpline at (800) 949-2732.

2. See CDD FAQ, Q.12, at p.9 (https://www.fincen.gov/sites/default/files/2018-04/FinCEN_Guidance_CDD_FAQ_FINAL_508_2.pdf). The response to Q.12 provides, in pertinent part, consistent with the definition of "account" in the CIP rules and subsequent interagency guidance, each time a loan is renewed or a certificate of deposit is rolled over, the bank establishes another formal banking relationship and a new account is established. Covered financial institutions are required to obtain information on the beneficial owners of a legal entity that opens a new account, meaning (in the case of a bank) for each new formal banking relationship established, even if the legal entity is an existing customer. For financial services or products established before May 11, 2018, covered financial institutions must obtain certified beneficial ownership information of the legal entity customers of such products and services at the time of the first renewal following that date. At the time of each subsequent renewal, to the extent that the legal entity customer and the financial service or product (e.g., loan or CD) remains the same, the customer certifies or confirms that the beneficial ownership information previously obtained is accurate and up-to-date, and the institution has no knowledge of facts that would reasonably call into question the reliability of the information, the financial institution would not be required to collect the beneficial ownership information again. In the case of a loan renewal or CD rollover, because we understand that these products are not generally treated as new accounts by the industry and the risk of money laundering is very low, if at the time the customer certifies its beneficial ownership information, it also agrees to notify the financial institution of any change in such information, such agreement can be considered the certification or confirmation from the customer and should be documented and maintained as such, so long as the loan or CD is outstanding.

FinCEN Ruling 2001-1

July, 26 2001

Dear []:

This responds to your letter dated February 25, 2000, on behalf [] (the “Bank”), to the Financial Crimes Enforcement Network (“FinCEN”). In that letter, you requested a ruling on the application of the rules relating to the filing of a currency transaction report (“CTR”), as authorized under the Bank Secrecy Act and its implementing regulations, to the facts outlined below.

FACTS

Bank A and Bank B are subsidiaries of the same bank holding company. A customer maintains an account at Bank A, but not at Bank B. The customer makes a cash deposit of \$12,000 at Bank B for credit to his account at Bank A. Pursuant to an agency agreement between the banks, Bank B processes the cash deposit and sends the appropriate transaction information to Bank A. Bank A credits the customer’s account in the amount of the cash deposit. The two banks settle through an internal account procedure without any physical transfer of cash between the banks.

QUESTIONS

Your letter correctly acknowledges that the cash deposit of \$12,000 by Customer X must be reported on a CTR. You then ask the following two questions:

1. Which bank is responsible for filing the CTR, the bank receiving the cash, the bank that maintains the account and receives the cash deposit slip, or both banks?
2. If the bank that holds the customer’s account is responsible for filing the CTR, must the bank also aggregate the customer’s transactions made through its agent bank even though the transactions made through the agent are done manually and not through the bank holding the account electronic system in conformity with § 103.22(c)(2) aggregation rules?

ANALYSIS

A financial institution's obligation to file a CTR is described in 31 CFR 103.22(b), which provides that:

Each financial institution other than a casino shall file a report of each deposit, withdrawal, exchange of currency or other payment or transfer, by, through, or to such financial institution which involves a transaction in currency of more than \$10,000

For purposes of the CTR requirement, a "financial institution" includes a bank, as well as any agent of a bank. 31 CFR 103.11(n).

According to the facts outlined above, the customer's cash deposit occurs "by, through, or to" Bank B, because Bank B is the financial institution that physically receives the cash. Thus, Bank B has an obligation to file a CTR. The customer's cash deposit also can be said to occur "by, through, or to" Bank A, because the cash deposit is conducted at one of its agents. Thus, both Bank A and Bank B are technically required to file a CTR;¹ however, to avoid unnecessary duplicative reporting, FinCEN would require that only one report actually be filed (in the manner set forth in the following paragraph) with respect to the same transaction. Thus, for example, Bank A would not need to file a CTR with respect to the customer's \$12,000 cash deposit so long as it knows for a fact that Bank B filed a CTR with respect to that transaction, and vice-versa.²

If Bank A files a CTR with respect to the customer's \$12,000 deposit, then Bank A should fill out Part III of the CTR form with its own information. In addition, the accounts affected by the deposit should be listed below Box 35 ("Account Number(s) Affected (if any):") and the phrase "Affiliate Transaction(s)" should be written in below Box 36 ("Other (specify):"). Conversely, if Bank B chooses to file a CTR with respect to the \$12,000 deposit, then Bank B should fill out Part III of the CTR form with its own information. Further, the accounts affected by the deposit (even if those accounts are not held at Bank B) should be listed below Box 35 and the phrase "Affiliate transaction(s)" should be written in below Box 36. Completing the CTR in this fashion will serve to notify law enforcement that the reported transaction may not have been physically conducted at the filing financial institution and/or that the account affected by the transaction is not held at the filing institution.

With respect to aggregation, Bank A would need to aggregate multiple cash transactions conducted at Bank B, acting as Bank A's agent with respect to those transactions, to the extent that Bank A "has knowledge that [the transactions] are by or on behalf of any person and result in either cash in or cash out totaling more than \$10,000 during any one business day ..." 31 CFR 103.22(c)(2). Knowledge, in this context, means knowledge on the part of a partner, director,

¹ The terms of Administrative Ruling 88-5 (August 2, 1988), 31 CFR Part 103 Appendix, are not inapposite to this conclusion. In that ruling, Treasury held that a financial institution has an obligation to file a CTR to the extent that it uses an armored car service as its agent to collect, transport and process a customer's cash deposits. The ruling did not discuss whether, under those circumstances, the agent itself also has an obligation to file a CTR.

² A bank that relies on its affiliate to file a CTR should retain in its own files a copy of the filed CTR for examination purposes.

officer or employee of Bank A or on the part of any existing computer or manual system at Bank A that permits it to aggregate transactions. If Bank A does not have knowledge that multiple cash transactions have been conducted by or on behalf of the same person on the same business day at Bank B, then Bank A is not required to aggregate those transactions. It should be noted that Bank B also would have an obligation to aggregate multiple cash transactions conducted through it (although only one report must be filed with respect to the same transactions), to the extent that Bank B has knowledge that the transactions are conducted by or on behalf of the same person on the same business day.

We appreciate your willingness to comply with the requirements of the Bank Secrecy Act to the fullest extent, and apologize for the delay in responding to your request. Should you have any questions about this letter, please contact David K. Gilles at (202) 354-6400.

Sincerely,

Christine E. Carnavos
Executive Associate Director
Office of Compliance and Regulatory Enforcement



Financial Crimes Enforcement Network Department of the Treasury

FinCEN Ruling 2003-8 – Definition of Money Transmitter (Merchant Payment Processor)

November 19, 2003

Dear []:

This letter responds to your letter dated February 5, 2003, requesting an administrative ruling with respect to whether [] is required to register with FinCEN as a Money Services Business in accordance with 31 CFR 103.41 by virtue of operating []. Based on the representations contained in your letter, FinCEN has determined that [] is not a Money Services Business as defined in 31 CFR 103.11(uu), by virtue of the ACH processing services provided by [], and is therefore not required to register with FinCEN.

According to your letter, [] operates a service called [] that provides third-party origination services for Automated Clearing House ("ACH") transactions on behalf of merchants. Through [], merchants can accept customer payments for purchases made through a merchant's web site, or by telephone, in the form of a checking account debit. []'s merchant customers obtain payment instructions to debit a customer's checking account and submit these payment instructions to [] through []. [] batches and submits the debit information to []'s bank for processing through the ACH system. Once []'s bank initiates the ACH, the depository institution at which the merchant's customer maintains a checking account debits the account of the customer, and sends a credit instruction through ACH to []'s bank, which then credits the amount to an operating account maintained at the bank by []. After a temporary holding period to ensure that the transaction initiated by the merchant is not returned, [] remits the funds to the merchant. Through [], merchants are also able to initiate credits to provide refunds to customers. You have asked whether [] would be deemed a money transmitter in accordance with 31 CFR 103.11(uu)(5) by virtue of providing this service.

The definition of money transmitter for purposes of BSA regulations found at 31 CFR 103.11(uu)(5) includes:

(A) [a]ny person, whether or not licensed or required to be licensed, who engages as a business in accepting currency, or funds denominated in currency, and transmits the currency or funds, or the value of the currency or funds, by any means through a financial agency or institution, a Federal Reserve Bank or other facility of one or more Federal Reserve Banks, the

Board of Governors of the Federal Reserve System, or both, or an electronic funds transfer network; or

(B) [a]ny other person engaged as a business in the transfer of funds.

FinCEN does not currently interpret the definition of money transmitter to include the third-party origination service that is described in your letter. The nature of the transactions you describe is the transfer of funds through the ACH system from a customer to a merchant as payment for goods and services. []'s role in the transactions is to provide merchants with a portal to a financial institution that has access to the ACH system. [] acts on behalf of merchants receiving payments rather than on behalf of customers making payments. For these reasons, the service that [] provides through [] more closely resembles payment processing/settlement than money transmission. Therefore, to the extent that the role of [] in such transactions is limited to submitting payment instructions obtained from a merchant to a bank for ACH processing, and remitting the funds received through the ACH process to the merchant (or in some cases, refunding money to the merchant's customer through an ACH transaction), FinCEN would not deem [] a money transmitter for purposes of 31 CFR 103.11(uu)(5).

In arriving at our decision in this matter, FinCEN relied upon the accuracy and completeness of the representations made in your February 5, 2003 letter. Nothing precludes FinCEN from seeking further action should any of this information prove inaccurate or incomplete. Finally, we note that you have requested that certain information contained in your letter be held in confidence and exempt from disclosure under the Freedom of Information Act, 5 U.S.C. 552. FinCEN reserves the right to publish this letter as guidance to financial institutions with all identifying information about you, [], [], and [], redacted. You will have 14 days after the date of this letter to identify any other information you believe should be redacted and the legal basis for the redaction. Should you have any questions, please telephone Christine Del Toro of my staff at (703) 905-3590.

Sincerely,

//signed//

Judith R. Starr
Chief Counsel

cc: David M. Vogt, Executive Associate Director, Office of Regulatory Programs
Deborah Silberman, Chief, MSB/Casinos/IRS Programs



Financial Crimes Enforcement Network Department of the Treasury

FinCEN Ruling 2004-4 – Definition of Money Services Business (Debt Management Company)

November 24, 2004

Dear []:

This letter responds to your letter dated June 16, 2004, requesting a determination as to whether your client, [the business], is a money services business (“MSB”) for purposes of regulations promulgated by the Financial Crimes Enforcement Network (“FinCEN”), under the Bank Secrecy Act (“BSA”). In response to our subsequent request, you provided additional information about [the business] by letter dated October 12, 2004. Pursuant to 31 CFR § 103.85 governing FinCEN’s authority to issue administrative rulings, FinCEN has determined, based on the representations in your letters, that [the business] is not an MSB as defined in 31 C.F.R. § 103.11(uu).

You have represented that [the business] proposes to enter into business as a debt management company. In general, a debt management company holds itself out as providing services to debtors in the management of their debts. Debt management companies contract with a debtor for a fee to (i) effect the adjustment, compromise, or discharge of debts, and (ii) receive funds from debtors, and to remit such funds to creditors on a debtor’s behalf.¹ Creditors that accept payments from debt management companies grant benefits to their client debtors, such as interest rate reductions, waiver of late charges, and reduction in monthly payment amounts. [The business] would make monthly payments to creditors on behalf of its client debtors. [The business] also provides debtors with access to educational resources to assist in budget planning, such as newsletters, online educational content, and financial counseling support.

A debtor client of [the business] would make a monthly payment consisting of the payment to be made to creditors on the debtor’s behalf by [the business], and a fee for [the business]. Debtors’ funds would be transmitted to [the business] either via ACH debits to debtors’ checking accounts by [the business]’s financial institution, or money order made payable to [the business]. [The business] would deposit the funds into one or more trust accounts established by [the business] at a national banking association. [The business] would distribute the funds to creditors either via Mastercard’s Remote Payment and Presentment Service, or by paper check drawn on [the business]’s account. While the majority of creditors that accept payments by [the business] on behalf of debtors are

¹ See, e.g., S.D. Codified Laws § 22-47-1 (2004).

credit card companies, a small number of medical services providers and utility companies also participate. [The business] requests a determination whether FinCEN would deem it an MSB by virtue of the debt management service it would provide.

Money services businesses, a category of financial institution for purposes of regulations implementing the BSA, are defined at 31 CFR § 103.11(uu) and include currency dealers and exchangers, check cashers, issuers, sellers, and redeemers of traveler's checks, money orders, or stored value, money transmitters, and the United States Postal Service. MSBs must comply with various reporting and record-keeping requirements, and must implement anti-money laundering programs. In addition, certain MSBs are subject to the requirement to register with FinCEN. The only MSB category into which [the business]'s business would possibly fall is money transmitter. The definition of money transmitter for purposes of BSA regulations found at 31 CFR 103.11(uu)(5) includes:

(A) [a]ny person, whether or not licensed or required to be licensed, who engages as a business in accepting currency, or funds denominated in currency, and transmits the currency or funds, or the value of the currency or funds, by any means through a financial agency or institution, a Federal Reserve Bank or other facility of one or more Federal Reserve Banks, the Board of Governors of the Federal Reserve System, or both, or an electronic funds transfer network; or

(B) [a]ny other person engaged as a business in the transfer of funds.

Whether a person is a money transmitter for BSA purposes is a matter of facts and circumstances. Based on the information contained in your letters, we conclude that [the business]'s debt management service does not constitute money transmission. As set forth in 103.11(uu)(5)(ii), FinCEN will generally not treat as a money transmitter a person engaged in the acceptance and transmission of funds "as an integral part of the execution and settlement of a transaction other than the funds transmission itself...." The general service that [the business] provides is to help debtors create a plan for payment and/or adjustment of their debts, and to obtain the agreement of creditors to accept payment under that plan. FinCEN views the money transmission that [the business] conducts as ancillary to the debt management service that [the business] provides, and incidental to a debtor's primary purpose in using the services of [the business]. To the extent that the money transmission conducted by [the business] is limited to submitting payments to creditors on behalf of debtors in conjunction with a debt management plan, FinCEN would not deem [the business] a money transmitter for purposes of 31 CFR 103.11(uu)(5).

In arriving at our decision, FinCEN relied upon the accuracy and completeness of the representations made in your letters and submissions. Nothing precludes FinCEN from seeking further action should any of this information prove inaccurate or incomplete. FinCEN reserves the right to publish this letter as guidance to financial institutions with information redacted in accordance with your request under 31 CFR §

103.81(a)(5), and as indicated in your June 16, 2004 letter. You will have 14 days after the date of this letter to identify any other information you believe should be redacted and the legal basis for the redaction. Should you have any questions, please telephone Anna Fotias, Senior Regulatory Compliance Specialist, at 202-354-6413.

Sincerely,

//signed//

William D. Langford, Jr.,
Associate Director
Regulatory Policy and Programs Division



Financial Crimes Enforcement Network
U.S. Department of the Treasury

Washington, D.C. 20220

Subject: **Instructions for Backfiling and Amending Currency Transaction Reports**
Issued: March 05, 2018

Beginning June 1, 2018, financial institutions are required to file the updated Currency Transaction Report (FinCEN CTR), which adheres to the changes defined in the Federal Register notice posted on February 20, 2016.¹

After May 31, 2018, Version 1.2 of the Currency Transaction Report will not be accepted and amendments to these reports must be submitted using the most recent updated FinCEN CTR (version 1.3 or later). Reports must be filed within **60 calendar days** of receipt of FinCEN's determination, unless otherwise instructed. When submitting the reports, the financial institution must follow the instructions that correspond with the appropriate filing method, as follows:

I. Discrete BSA E-Filing of FinCEN CTRs:

The financial institution is required to submit FinCEN CTRs through the BSA E-Filing System in accordance with BSA electronic filing requirements.² Filers must ensure that the electronic file submission includes:

- For Backfiling CTRs, select Item 1 "FinCEN directed Backfiling"; or
- For Amending CTRs, select Item 1 "Correct/amend prior report" and complete the BSA Identifier ("BSA Identifier," or "BSA ID") field.

After the financial institution has filed the FinCEN CTRs, it must send a letter confirming that the reports have been backfiled and/or amended. The letter should be addressed to FinCEN, with copies sent to the federal and state agencies that examine the financial institution's Bank Secrecy Act/Anti-Money Laundering Compliance Program. **Please see section IV of this document for instructions outlining the information that must be included in the letter.**

¹ <https://www.federalregister.gov/documents/2016/02/02/2016-01825/proposed-collection-comment-requestbank-secrecy-act-currency-transaction-report-bctr-revised-layout>

² http://bsae filing.fincen.treas.gov/docs/XMLUserGuide_FinCENCTR.pdf

II. Batch BSA E-Filing of FinCEN CTRs:

The financial institution is required to submit FinCEN CTRs through the BSA E-Filing System. The FinCEN CTRs must be filed in accordance with BSA electronic filing requirements.³ The financial institution should ensure that the electronic file submission includes:

- For Backfiling Batch CTRs, record the element “FinCENDirectBackFileIndicator” with a “Y” value; or
- For Amending Batch CTRs, record the element “CorrectsAmendsPriorReportIndicator” with a “Y” value, and record the element “EFilingPriorDocumentNumberenter” with the previously assigned BSA Identifier as the value.

After the financial institution has filed the FinCEN CTRs, it must send a letter confirming that the reports have been backfiled and/or amended. The letter should be addressed to FinCEN with copies sent to the federal and state agencies that examine the financial institution’s Bank Secrecy Act/Anti-Money Laundering Compliance Program. **Please see section IV of this document for instructions explaining the information that must be included in the letter.**

III. BSA E-Filing of FinCEN Designation of Exempt Person (FinCEN DOEP):

In the event that FinCEN has granted regulatory relief for a bank to file a FinCEN DOEP in lieu of backfiling or amending FinCEN CTRs and the bank chooses to exempt an eligible customer, the bank is required to file a FinCEN DOEP through the BSA E-Filing System. The FinCEN DOEP must be completed in accordance with the BSA electronic filing requirements.⁴

After the bank has filed the FinCEN DOEP, it must send a letter to FinCEN, with copies sent to the federal and state agencies that examine the financial institution’s Bank Secrecy Act/Anti-Money Laundering Compliance Program. The letter must include the assigned 14-digit BSA ID number of the FinCEN DOEP that was filed.

IV. Notifying FinCEN of Backfiled and Amended FinCEN CTRs:

All correspondence relating to a CTR backfiling/amending request or determination should be emailed to fincenreports@fincen.gov. You must encrypt your email and send the password in a separate email. When encrypting your email, the password must be at least eight characters long, include at least one lowercase, one uppercase, one numeric, and one special character. Please note, FinCEN will not access emails sent through third-party email encryption services that require the recipient to establish an account.

Financial institutions must send notification to FinCEN in the form of a letter, confirming that FinCEN CTRs have been backfiled and/or amended using the discrete or batch e-filing method indicated above or that a FinCEN DOEP was submitted. The letter to FinCEN must be sent via an encrypted email as outlined above within **60 calendar days** of receipt of FinCEN’s

³ http://bsaeiling.fincen.treas.gov/docs/XMLUserGuide_FinCENCTR.pdf

⁴ <http://bsaeiling.fincen.treas.gov/news/FinCENDOEPElectronicFilingRequirements.pdf>

determination, unless otherwise instructed. Do not include copies of completed FinCEN CTRs or DOEPs with the letter. The following information must be included in the letter to FinCEN:

1. Legal name of the financial institution that filed the report(s)
2. Address of the financial institution that filed the report(s)
3. Name of the institution's Primary Federal regulator (if none, Primary State regulator)
4. Name, phone number, and **email address** of the financial institution contact person
5. The date of the transaction (the business day that the reportable transaction occurred)
6. The total cash-in/cash-out dollar amount of the report
7. The 14-digit BSA IDs of the original and amended CTRs.⁵
8. A brief statement explaining the errors or issues that prompted the requirement for CTRs to be backfiled or amended, and any actions taken to correct those issues going forward.

Upon receiving the financial institution's letter and confirming completion of the backfiling/amending process, FinCEN will send the financial institution an email which will serve as acknowledgement that the FinCEN CTR backfiling/amending process has been completed, requiring no further action. This acknowledgement will only be sent by email, therefore the letter must include a valid email address in order to receive this final communication.

Questions:

If you have general questions regarding backfiling or amending FinCEN CTRs, please contact FinCEN's Resource Center at FRC@fincen.gov. If you have questions related to BSA E-Filing or would like assistance in enrolling in BSA E-Filing, please contact the BSA E-Filing Help Desk at BSAEFilingHelp@fincen.gov.

If you have questions about a specific DOEP and/or CTR backfiling or amending determination request that you submitted, please email your inquiry to fincenreports@fincen.gov.

⁵ In 2-3 business days after filing CTRs, the BSA ID numbers are sent to the email address associated with your BSA E-filing System account and will be available in the "Track Status" option within your BSA E-filing System account. If you are backfiling CTRs, you must supply the BSA ID number for each report that you have backfiled (e.g., 310000123456). If you are amending CTRs, you must supply both the BSA ID of the initial report (e.g., 310000123456) and the BSA ID of the amending CTR (e.g., 310000987654)